

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Ho	Team: Squad #3	CCRB Case #: 201508309	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 09/23/2015 6:55 PM	Location of Incident: § 87(2)(b)		Precinct: 47	18 Mo. SOL 3/23/2017	EO SOL 3/23/2017
Date/Time CV Reported Wed, 09/23/2015 9:15 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/01/2015 12:55 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Robert Salerno	02909	943769	047 DET
2. DT3 Abraham Villavizar	08178	934245	047 DET
3. CPT Johnny Orellana	00000	920679	047 PCT
4. LT Tawee Theanthong	00000	933406	047 DET
5. POM Kevin Weber	26421	948439	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Robert Salerno	Abuse: In front of § 87(2)(b) in the Bronx, Det. Robert Salerno stopped § 87(2)(b)	§ 87(2)(g), § 87(4-b)
B.LT Tawee Theanthong	Abuse: Lieutenant Tawee Theanthong entered and searched § 87(2)(b) and § 87(2)(b) in the Bronx.	§ 87(2)(g), § 87(4-b)
C.CPT Johnny Orellana	Abuse: Captain Johnny Orellana entered and searched § 87(2)(b) in the Bronx.	§ 87(2)(g), § 87(4-b)
D.DT3 Robert Salerno	Force: In § 87(2)(b) § 87(2)(b) in the Bronx, Det. Robert Salerno used physical force against § 87(2)(b)	§ 87(2)(g), § 87(4-b)
E.POM Kevin Weber	Force: In the ambulance en-route to § 87(2)(b) PO Kevin Weber tightly handcuffed § 87(2)(b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(g), § 87(4-b)

Case Summary

On September 23, 2015, Sgt. James Weck of the 47th Detective Division filed this complaint with IAB on behalf of § 87(2)(b) generating log #2015-28884. It was referred to the CCRB on October 1, 2015.

On September 23, 2015, at 6:55 p.m., § 87(2)(b) was outside § 87(2)(b) in the Bronx when he observed two officers (identified as Det. Abraham Villavizar and Det. Robert Salerno of the 47th Precinct Detective Division) in plainclothes approach him. Det. Salerno told § 87(2)(b) “Don’t run,” but § 87(2)(b) ran anyways (**Allegation A**). § 87(2)(b) ran into § 87(2)(b) with Det. Villavizar and Det. Salerno closely following. On one side of the building in the third floor stairwell, Det. Villavizar grabbed § 87(2)(b) to handcuff him. § 87(2)(b) struggled against Det. Villavizar and fled down the stairs. § 87(2)(b) noticed Det. Salerno coming towards him from the second floor. § 87(2)(b) jumped over the banister and landed on the second floor. § 87(2)(b) ran into § 87(2)(b) and immediately went to the window and up the fire escape to § 87(2)(b). § 87(2)(b) noted that it is common practice for him to enter his friends’ apartments, even when no one was home. § 87(2)(b) lied down on the floor beside an inflatable bed. Lieutenant Tawee Theanthong of the 47th Precinct Detective Division supervised the entry into § 87(2)(b) to arrest § 87(2)(b) (**Allegation B**). When it was discovered the apartment was empty, officers learned § 87(2)(b) were known shelter apartments to § 87(2)(b). Lieutenant Theanthong supervised the entry into § 87(2)(b) but § 87(2)(b) was not there (**Allegation B** continued). In § 87(2)(b) § 87(2)(b) heard officers knock at the front door and also observed officers enter the apartment through the window (**Allegation C**). There were approximately eight officers; some in uniform and some in plain clothes. The officers said, “There he is, there he is, put your hands up,” as they grabbed him by his legs and arms to pick him up. After § 87(2)(b) complied with officers’ commands to put his arms up, they placed him against the wall to handcuff him. Officers continued to hold § 87(2)(b) by his legs and arms against the wall so that he could not resist the officers if he tried. Det. Salerno ran around the other officer to punch him in the face (**Allegation D**). ESU officers were requested to wrap him in a mesh restraining device and he was escorted out to the ambulance. While en-route to § 87(2)(b) § 87(2)(b) alleged that when he asked the officer accompanying him in the ambulance (identified as PO Kevin Weber) to loosen his handcuffs, his handcuffs were tightened even more (**Allegation E**). § 87(2)(b) sustained a laceration above his eye that only required a butterfly bandage. § 87(4-b) § 87(2)(g)

There is no video footage of this incident. § 87(2)(g)

Mediation, Civil and Criminal Conviction Histories

- As § 87(2)(b) was arrested and sustained injuries, this case was not eligible for mediation.
- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of February 10, 2016 with regard to the incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) [BR 11].
- Det. Robert Salerno has been a member of the service for 9 years and there are no substantiated CCRB allegations against him.
- Lieutenant Tawee Theanthong has been a member of the service for 12 years and there are no substantiated CCRB allegations against him.
- Captain Johnny Orellana has been a member of the service for 18 years and there is 1 substantiated CCRB allegation against him.
 - In case 201211468, an allegation of offensive language (gender) was substantiated, charges were recommended, and the NYPD has not yet reached a disposition.
- Det. Abraham Villavizar has been a member of the service for 12 years and there are no substantiated CCRB allegations against him.
- PO Kevin Weber has been a member of the service for 6 years and there are no substantiated CCRB allegations against him.

Potential Issues

- Three letters were mailed to each of the current residents of § 87(2)(b). To date, no letter has been returned by the USPS and no resident has contacted the undersigned.
- § 87(2)(g) [REDACTED].

Finding and Recommendations

Explanation of Subject Officer Identification

- Lieutenant Theanthong identified himself as the highest ranking officer present to supervise the entries into § 87(2)(b) and § 87(2)(b) of § 87(2)(b) in the Bronx, on September 23, 2015. § 87(2)(g) [REDACTED].
- Lieutenant Theanthong identified Captain Orellana as the highest ranking officer present who supervised the entry into § 87(2)(b), of § 87(2)(b) in the Bronx on September 23, 2015. § 87(2)(g) [REDACTED].

Allegations Not Pleaded

- § 87(2)(g) [REDACTED]

Recommendations

- **Allegation A: Abuse of Authority – In front of § 87(2)(b) in the Bronx, Det. Robert Salerno stopped § 87(2)(b)**
§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].
- **Allegation B: Abuse of Authority – Lieutenant Tawee Theanthong entered and searched § 87(2)(b) § 87(2)(b) in the Bronx.**
- **Allegation C: Abuse of Authority – Captain Johnny Orellana entered and searched § 87(2)(b) § 87(2)(b) in the Bronx.**

As per § 87(2)(b) upon observing Det. Salerno and Det. Villavizar outside § 87(2)(b) he fled down the sidewalk and into § 87(2)(b) [BR 01; BR 02]. Det. Salerno and Det. Villavizar each ran up one of the two stairwells on each side of the building in pursuit of § 87(2)(b). As he was running down the stairs, § 87(2)(b) encountered Det. Villavizar on the third floor landing and successfully resisted arrest. Upon observing Det. Salerno running towards him from the second floor landing, § 87(2)(b) jumped over the banister and landed on the second floor, where he proceeded to flee into § 87(2)(b). The apartment belonged to a friend of § 87(2)(b)'s which at the time was unoccupied. § 87(2)(b) immediately ran to the window and up the fire escape at the rear of the building and up to the fourth floor. § 87(2)(b) exited the fire escape and entered directly into the window of § 87(2)(b) which belonged to another friend of § 87(2)(b)'s. He hid beside an inflatable bed in the living room. § 87(2)(b) denied having texted § 87(2)(b) his location and stated he did not have a phone with him at the time.

While standing outside § 87(2)(b) § 87(2)(b) heard from different people that § 87(2)(b) had run into § 87(2)(b) and then went up to § 87(2)(b) [BR 06]. § 87(2)(b) explained that § 87(2)(b) knew § 87(2)(b) and § 87(2)(b) were shelter apartments, and knew their occupants, § 87(2)(b) and § 87(2)(b), respectively. § 87(2)(b) explained that § 87(2)(b) belonged to § 87(2)(b) the woman § 87(2)(b) cheated on her with and § 87(2)(b) belonged to another friend who leaves her apartment unlocked so her children could come and go as they please. § 87(2)(b) denied having received any texts from § 87(2)(b) and explained that he did not have a cellphone with him at the time.

Det. Villavizar lost sight of § 87(2)(b) when § 87(2)(b) fled down the stairs from the fifth floor landing, and heard a door slam from the second floor but did not know which apartment it was [BR 04]. At the same time, Det. Salerno was running up the stairs and informed Det. Villavizar that he observed § 87(2)(b) run into § 87(2)(b) which was right next to the stairwell. Det. Villavizar was not present for when § 87(2)(b) was eventually apprehended. Once other officers began to arrive to assist, Det. Villavizar stepped outside the building to vomit and was taken to an ambulance for dehydration and physical exhaustion.

Det. Salerno confirmed § 87(2)(b)'s version of events, that he observed § 87(2)(b) run into § 87(2)(b) and the door locked behind him [BR 05]. After ESU officers entered § 87(2)(b) and discovered § 87(2)(b) was not there, Det. Salerno learned that § 87(2)(b) were shelter apartments and that § 87(2)(b) had knowledge of this information. § 87(2)(b) the resident of § 87(2)(b) had informed officers she did not know § 87(2)(b) and that he did not have permission to be in her apartment. ESU sent a robot camera into § 87(2)(b) and cleared it, and then the ESU crew entered the apartment to confirm § 87(2)(b) was not there. Then, Det. Salerno and other officers went to § 87(2)(b) to knock on the door. The resident of § 87(2)(b) granted officers access to sweep the apartment. Det. Salerno was also informed by § 87(2)(b) that § 87(2)(b) had texted her he was hiding on the 'top floor.' With that information, Det. Salerno went to the rooftop of the building and joined officers on the fire escape outside § 87(2)(b). Through the window, Det. Salerno observed § 87(2)(b)'s feet sticking out from under a bed in the living room. Det. Salerno entered through the window and went to the front door of the apartment to allow other officers to enter; once together, they apprehended § 87(2)(b).

Lieutenant Theanthong explained that Det. Salerno was the officer who issued the I-cards for § 87(2)(b) and had been looking for § 87(2)(b) for some time [BR 09]. Det. Salerno had been working in conjunction with Warrant Squad, who unsuccessfully made numerous attempts to find § 87(2)(b) at home in the morning. When Warrant Squad informed Det. Salerno of this, Det. Salerno went to speak with § 87(2)(b) who informed Det. Salerno how he could find § 87(2)(b). When Lieutenant Theanthong arrived, he attempted to speak with Det. Villavizar who

was too out of breath to speak. Lieutenant Theanthong then went inside the building to speak with Det. Salerno, who was guarding the door to § 87(2)(b). Det. Salerno informed Lieutenant Theanthong that he and Det. Villavizar went to § 87(2)(b) to look for § 87(2)(b). When Det. Salerno observed § 87(2)(b) in front of the location, a foot pursuit ensued. Det. Salerno and Det. Villavizar split up inside § 87(2)(b) and Det. Villavizar was the first to encounter § 87(2)(b). Det. Villavizar and § 87(2)(b) got in a scuffle and § 87(2)(b) escaped. Det. Salerno made visual contact with § 87(2)(b) and picked up the foot pursuit. Det. Salerno observed § 87(2)(b) run into § 87(2)(b) and § 87(2)(b) closed the door on him. Det. Salerno stood guard the door and called for additional units over the radio. Patrol officers had responded first and Det. Salerno instructed some to secure the back of the building from the ground. Lieutenant Theanthong called for ESU and when they arrived, he authorized them to make entry into § 87(2)(b) without a warrant as it was pursuant to hot pursuit and there was not expedient time or the necessity to obtain a warrant. ESU released a robot camera into § 87(2)(b) and cleared it. Lieutenant Theanthong checked with a supervisor stationed at the rear of the building to ensure § 87(2)(b) was secured. Officers then made entry into § 87(2)(b) to confirm that it was empty. Then, § 87(2)(b) informed Det. Salerno who in turn informed Lieutenant Theanthong that § 87(2)(b) had contacted her and told her he was hiding on the top floor of the building. § 87(2)(b) had explained that § 87(2)(b) were known shelter apartments and that § 87(2)(b) would often go back and forth between standing outside § 87(2)(b) selling narcotics to one of the three apartments at § 87(2)(b) to ‘lay low.’ The apartments were never locked and § 87(2)(b) knew no one would stop him from entering them. At some point, Lieutenant Theanthong noted that they had called the building superintendent’s phone number which was posted in the lobby but no one responded. Lieutenant Theanthong accompanied officers to § 87(2)(b). Lieutenant Theanthong did not believe ESU forced entry into the apartment – but that either it was unlocked or someone opened it and granted them access. § 87(2)(b) was not there. On the fourth floor, Lieutenant Theanthong had two officers go from the rooftop of the building to the fire escape for § 87(2)(b). At the front door to § 87(2)(b) was Lieutenant Theanthong, Det. Salerno, Captain Johnny Orellana of the 47th Precinct, and a few uniformed officers. As they banged on the door, a resident opened the door to the adjacent apartment, gave the officers a nod as he pointed toward § 87(2)(b) and just as quickly closed his door, a cue that there was something going on inside § 87(2)(b). The two officers on the fire escape saw movement inside the apartment, gained entry through the window at the fire escape, opened the front door for them, and they collectively secured the apartment. Lieutenant Theanthong heard an officer shout out, “I see his shoes, his shoes! He’s under the bed!” § 87(2)(b)’s feet stuck out from under the bed and he was subsequently apprehended.

The courts have established that warrantless entries into private homes are presumed unconstitutional. Exceptions to this rule include consent and exigent circumstances as established in People v. McBride, 14 N.Y.3d 440 (2010) [BR 16], and hot pursuit as established in People v. Skinner, 284 A.D.2d 906 (2001) [BR 15]. In regards to the exigent circumstances exception, the courts utilize a six-part test: “(1) the gravity or violent nature of the offense with which the suspect is to be charged; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause...to believe that the suspect committed the crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry.” McBride. The courts have held that in order for the hot pursuit exception to exist, officers must have probable cause to arrest an individual while he or she is outside the private location to be entered and the arrest must have been set in motion in a public place, prior to the individual’s flight into the private location. Skinner.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

• **Allegation D: Force – In § 87(2)(b) § 87(2)(b) in the Bronx, Det. Robert Salerno used physical force against § 87(2)(b)**

§ 87(2)(b) explained that once officers located him inside § 87(2)(b) eight to ten officers gathered around him as one officer handcuffed him against a wall [BR 01]. § 87(2)(b) explained that he did not resist being handcuffed as the officers held him by his chest and back to the wall; he stood facing the wall with his head turned to the left). After § 87(2)(b) was handcuffed, Det. Salerno walked around the officers and punched § 87(2)(b) once in the face, impacting just above his left eye. As a result, § 87(2)(b) allegedly sustained a laceration one inch above his eyebrow.

Det. Salerno explained that once they found § 87(2)(b) hiding next to the air mattress, § 87(2)(b) went ‘nuts’ and ‘berserk’ and tried to push past him to escape [BR 05]. When § 87(2)(b) went to push Det. Salerno, Det. Salerno struck § 87(2)(b) once, in possibly his head area. § 87(2)(b) did not have much of a reaction to being punched and continued to attempt to head for the front door. § 87(2)(b) did not punch Det. Salerno back and Det. Salerno did not strike him again. Det. Salerno was able to take out his handcuffs and secure one of § 87(2)(b)s arms. § 87(2)(b) resisted by kicking and spitting at the officers. It took the assistance of the five to seven additional officers to handcuff § 87(2)(b) Present in the room and assisting were Captain Orellana, Lieutenant Theanthong, and other officers. They did not use a wall to assist them in handcuffing § 87(2)(b) but instead brought him down to the ground. Once handcuffed, Captain Orellana called ESU to return to the apartment to ‘bag’ § 87(2)(b) to inhibit him from further kicking or spitting. Det. Salerno did not observe any injury to § 87(2)(b)s face, did not hear him complain of any injury, and did not offer him medical attention. Det. Salerno explained that was the last contact he had with § 87(2)(b)

As per Lieutenant Theanthong, § 87(2)(b) was lying face up on the ground when Lieutenant Theanthong and other officers tried to handcuff him [BR 07]. When they managed to get § 87(2)(b) up from the ground, he attempted to flee towards the front door of the apartment.

Lieutenant Theanthong yelled out, “Get him on the ground, get him on the ground!” as § 87(2)(b) tried to push his way past Det. Salerno who was standing in front of him. § 87(2)(b) flailed and kicked at all the officers as Lieutenant Theanthong and other officers tried to grab at § 87(2)(b) to bring him back down to the ground. At the time, Captain Orellana was standing on one side of § 87(2)(b) while two uniformed officers stood on § 87(2)(b)’s other side. Then, Lieutenant Theanthong observed Det. Salerno strike § 87(2)(b) once in the head. Lieutenant Theanthong explained that as he was standing directly behind § 87(2)(b) when it happened and § 87(2)(b) is significantly taller than himself, he did not observe where on § 87(2)(b) Det. Salerno specifically struck. § 87(2)(b) did not react in any way towards having been punched and continued his attempt towards the front door. Lieutenant Theanthong did not recall who took out their handcuffs and who eventually handcuffed § 87(2)(b) as they were all on top of him trying to secure him. § 87(2)(b) spat at the officers and told them, “You lucky mother fuckers. If you didn’t catch me now you never would’ve caught me!” As § 87(2)(b) was still uncooperative and recalcitrant, Lieutenant Theanthong called back the ESU crew who had been packing up their gear to leave, and instructed them to ‘bag’ § 87(2)(b). Lieutenant Theanthong had observed a scratch above one of § 87(2)(b)’s eyebrows that was not there prior to their struggle inside § 87(2)(b). However, Lieutenant Theanthong did not know at what point § 87(2)(b) sustained the scratch or how he sustained it.

In the Unusual Occurrence Report he drafted, Captain Orellana noted that § 87(2)(b) was found underneath a bed and when attempting to place him under arrest, he resisted arrest by refusing to be handcuffed [NYPD 16]. During the struggle, § 87(2)(b) sustained a small laceration to his upper left eye. ESU placed § 87(2)(b) in a body wrap as he was still being very combative and had to be restrained. EMS was notified to provide medical attention and to transport § 87(2)(b) to § 87(2)(b) where he was treated and received stitches for the minor laceration.

The ESU report notes the crew was requested to stand by when § 87(2)(b) was discovered by officers in § 87(2)(b) and violently resisted arrest [NYPD 14]. The ESU crew was requested to restrain § 87(2)(b) and utilize the mesh restraining device to contain § 87(2)(b). § 87(2)(b) was violent and out of control, spitting and claiming to be HIV positive.

The Ambulance Call Report noted EMTs waited on scene for over an hour while officers attempted to obtain access to the apartment where § 87(2)(b) was supposedly barricaded [Privileged]. § 87(2)(b) was finally apprehended and brought down by ESU in a full body restraint. Officers stated § 87(2)(b) made claims of being HIV positive. It was observed that he had a minor laceration above his left eyebrow and noted that the bleeding was controlled. EMTs were unable to obtain § 87(2)(b)’s vitals due to the restraints.

Medical records from § 87(2)(b) note § 87(2)(b) arrived still contained in the mesh restraining device and that blood from the 1 cm laceration on his left eyebrow was already dried [Privileged]. The laceration was repaired with a dermabond adhesive. § 87(2)(b) was also prescribed ibuprofen (pain), haloperidol (mental disorders), and lorazepam (anxiety).

§ 87(2)(b)’s arrest photograph shows a non-bleeding scratch less than one inch in length on the arch of § 87(2)(b)’s left eyebrow [NYPD 18].

NYPD P.G. §203-11 states an officer must “use minimum necessary force” at the scene of a police incident to effect an arrest [BR 07].

§ 87(2)(g)

§ 87(2)(g)

- § 87(2)(b) alleged that while he was in the ambulance wrapped in a mesh bag with a mask over his face, he asked the officer in the ambulance with him to loosen his handcuffs [BR 01]. However, the officer responded by tightening his handcuffs.

The ESU report [NYPD 14] and § 87(2)(b)'s medical records from § 87(2)(b) [Privileged] confirm he was wrapped in an EDP Mesh Restraining Device, which is used to restrain movement of the arms and legs, and discourage spitting.

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED].

- [REDACTED]

Investigator:	_____	<u>Rebecca Ho</u>	<u>02/17/16</u>
	Signature	Print	Date
Supervisor:	_____	<u>Dane Buchanan</u>	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer: _____
 Title/Signature Print Date